



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Copy of USE OF TOBACCO BY CLASSIFIED STAFF
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4215 - ~~USE OF TOBACCO BY CLASSIFIED STAFF~~ **TOBACCO USE PREVENTION**

The Board of Education is committed to providing students, staff, and visitors with a tobacco, nicotine, vapor/aerosol, and smoke-free environment. The negative health effects of tobacco use for both users and nonusers, including the effects of second hand smoke and vapor/aerosol exposure, particularly in connection with second hand smoke, are well established. Further, providing non-smoking and tobacco-free environment is consistent with the responsibilities of teachers and staff to be positive role models for our students.

For purposes of this policy, "use of tobacco" means to chew or maintain any substance containing tobacco, including smokeless tobacco, in the mouth to derive the effects of tobacco, as well as all uses of tobacco or tobacco substitutes, including cigars, cigarettes, pipe tobacco, chewing tobacco, snuff any other matter or substances that contain tobacco or nicotine (including synthetic nicotine), in addition to papers used to roll cigarettes, and/or the smoking of electronic, "vapor," or other substitute forms of cigarettes, clove cigarettes, and other smoking devices for burning tobacco or any other substance. ~~"vapor," or other substitute forms of cigarettes, clove cigarettes and any other lights smoking device for burning tobacco or any other substance.~~

The term "tobacco" includes any product containing, made of, or derived from tobacco or nicotine (including synthetic nicotine) that is intended for human consumption or is likely to be consumed, whether inhaled, absorbed, or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, or snus; any electronic smoking device and any substances that may be aerosolized or vaporized by such device, whether or not the substance contains nicotine; an e-cigarette (including, but not limited to, "JUUL", "NJOY," "BREEZE," "Puff Bar," etc.), e-cigar, e-pipe, vape pen, or e-hookah; ~~any product that contains tobacco, is derived from tobacco, contains nicotine, or e-cigarettes and other electronic smoking devices (including but not limited to "JUUL"s),~~ but does not include any cessation product approved by the United States Food and Drug Administration for use as a medical treatment to reduce or eliminate nicotine or tobacco dependence.

~~In order to protect students and staff who choose not to smoke or use tobacco from an environment noxious to them, and because the Board does not condone smoking or the use of tobacco, the~~ The Board prohibits the use of tobacco or tobacco substitute products by ~~classified staff members~~ **employees** at all times (twenty-four (24) hours a day, seven (7) days a week) within any enclosed facility owned, or leased, or contracted for the Board, and in areas directly or indirectly under the control of the Board immediately adjacent to locations of ingress or egress to such facilities. This prohibition extends to any Board-owned and/or operated vehicles used to transport students and to all other Board-owned and/or operated vehicles. Such prohibition also applies to school grounds, athletic facilities, and /or any school-related event, athletic grounds, parking lots, and off campus events during school hours and non-school hours **and in designated areas as defined in statute and by Ohio's Smoke-Free Workplace Program.**

The Superintendent shall require the posting of signs as required by R.C. 3794.06 and as specified by the Ohio Department of Health.

Advertising/Promotion

In accordance with Policy 9700.01, tobacco advertising is prohibited on school grounds, in all school-sponsored publications, and at all school-sponsored events.

Tobacco promotional items that promote the use of tobacco products, including clothing, bags, lighters, and other personal articles are not permitted on school grounds, in school vehicles, or at school-sponsored events.

Education and Training

Training will be provided on this policy and associated resources. Information will be provided on cessation resources, including the free Ohio Tobacco Quit Line.**[END OF OPTION]**

Enforcement

Employees who violate this policy shall be subject to disciplinary action in accordance with the applicable Collective Bargaining Agreement and/or in accordance with policies of the Board.

Employees who violate this policy may be subject to dismissal in accordance with Board policy and the negotiated agreement.

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Revised 5/23/11
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Legal	R.C. 3313.20, 3313.47, 3794 et seq. 20 U.S.C. 6081 et seq., 20 U.S.C. 7182 A.C. 3701-52
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